

26SMCV01314 26SMCV01314

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-08

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Case Number: 26SMCV01314 Hearing Date: July 8, 2026 Dept: M

CASE NAME: Handal v. LA

Wellness Center, et al.

CASE NO.: 26SMCV01314

MOTION: Motion

to Vacate Default and Default Judgment

HEARING DATE: 7/8/2026

Legal

Standard

CCP section 473(d) states "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544.) Without personal jurisdiction, a default judgment will be void. (Kremerman v. White (2021) 71 Cal.App.5th 358, 374.)

Analysis

Defendant Los Angeles Wellness

Center moves to set aside default and default judgment. Defendant solely moves on the grounds that the default and default judgment are void for lack of personal jurisdiction. (CCP § 473(d).)

Here, the proof of service of summons on file, in support of the entry of default, is invalid. The first proof of service states that the manner of service was for "substitute service" on recipient "Katchko, Vitello & Karikomi PC," purportedly Defendant's agent for service of process. However, the proof of service does not comply with the requirements of substitute service. There is no declaration of due diligence or proof of a follow up mailing. (CCP § 415.20.) The second proof of service states that the manner of service was for personal service on an employee-security guard Sifuentes. However, Defendant submits evidence that the security guard is not an employee or otherwise authorized to accept service on their behalf. Plaintiff's declaration fails to verify the pleadings attached as exhibit 6 to the Handal declaration. Plaintiff therefore fails to demonstrate that the security guard is an authorized agent for service of process. (Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1163 [plaintiff bears the burden of showing agency].) To the extent that this was an attempt at substituted service, there is also no declaration of due diligence or proof of a follow up mailing. (CCP § 415.20.) Since Defendant was not properly served with summons prior to entry of default, the resulting default and default judgment are void and will be set aside. Accordingly, the motion to vacate is GRANTED.

Defendant shall file a responsive pleading (demurrer) by July 10, 2026.